

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

(1) The Court - by calling (408) 808-6856 and

(2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 /Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV421547	Farzam Forouzandeh vs Thaddeus Taube et al	Hearing on Motion for Summary Judgment, or in the Alternative, Summary Adjudication See Line 1 below for tentative ruling. The Court will prepare and file the formal Order.

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LINE 2	23CV423174	Ari Law, P.C. vs. Katalyst Development, LLC et al	Hearing on Motion for an Order Applying Property to Satisfy Judgment (CCP 708.205) The Plaintiff's motion was filed on January 12, 2026, and was accompanied by two declarations in support of the motion and proof of service. Defendants' opposition was filed on June 26, 2026, and accompanied by a declaration in opposition of the motion. A reply was filed by Plaintiff on July 2, 2026. On June 26, 2026, Defendants filed objections to one of the declarations filed in support of Plaintiff's motion. Plaintiff filed their response to the evidentiary objections on July 2, 2026, along with their objections to the declaration filed in support of Defendants' opposition to the motion. Defendant's objections to paragraphs 4,6,7,8,11,13, and 15 of Ali Mousavi's declaration are OVERRULED. Plaintiff's six objections to Walid Mando's declaration are OVERRULED. The Court has carefully reviewed the moving papers, including the declarations and attachments filed related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Although the perfecting of an appeal generally stays proceedings and enforcement in the trial court under Code of Civil Procedure section 916 this general rule does not apply to money judgments. Specifically, Code of Civil Procedure section 917.1 dictates that the perfecting of an appeal does not stay the enforcement of a judgment or order for money or the payment of money unless an undertaking is given. Because the \$276,924.65 judgment issued on December 10, 2024 in this case is a money judgment (encompassing breach of contract and unpaid attorney fees) and the Defendants have not requested a stay of enforcement or provided a showing of or a sufficient undertaking, the judgment remains fully enforceable pending an appeal. To obtain a stay of enforcement for a money judgment, the appellant must provide a sufficient undertaking or bond. During judgment debtor examination proceedings, which are designed to discover and apply assets to satisfy a money judgment, the court is authorized to issue turnover and satisfaction orders. Under Code of Civil Procedure section 708.205, at the conclusion of an order for examination proceeding, the court may order the judgment debtor's interest in property in the possession or under the control of the judgment debtor (or a third
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			person) to be applied toward the satisfaction of the money judgment, provided the property is not exempt from enforcement. Accordingly, Plaintiff's motion is GRANTED. Plaintiff is to prepare the order for filing. Any payment made is to be made directly to Judgment Creditor, Plaintiff Ari Law, P.C., and shall not exceed the amount necessary to satisfy the judgment and any accrued post-judgment interest and enforcement costs.
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LINE 3	24CV428712	Belen Ibanez vs Javier Ibanez et al	Hearing on Motion to Deem Requests for Admissions, Set One, Admitted and Monetary Sanctions Defendant filed this motion on March 2, 2026 relative to the initial Request for Admissions, Set One served on Plaintiff on October 7, 2025 and due on November 10, 2025, and was followed by an extension of the due date to November 24, 2025 and when no response was provided a meet and confer letter on December 10, 2025 requesting verified responses without objection. Plaintiff's opposition was filed on June 9, 2026, indicating that a response to the Request for Admissions, Set One was served on April 20, 2026 and arguing that the motion is moot. Defendant filed a Reply on July 1, 2026 acknowledging the belated compliance and arguing a disregard and misuse of the discovery process that necessitated the filing of this motion. The Court has carefully reviewed the moving papers, including the declarations of counsel and attachments in all three filings related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Defendant's motion for Request for Admissions, Set One is DENIED as moot. No evidence being presented by Plaintiff of a substantial justification or circumstances making the imposition of the sanctions unjust (for a 90-day delay) and necessitating the filing of this motion by Defendant, the Request for Sanctions pursuant to Code of Civil Procedure sections 2023.280 and 2023.030 is GRANTED. The Court orders Sanctions in the amount of \$595 (the filing fee of \$60, one hour of paralegal work at a rate of \$175/hour, and \$360 for .6 hours of work at the attorney rate of \$600/hour) to be paid within 20 days of the filing of this order. Moving party (Defendant) to prepare the order.
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LINE 4	24CV434443	Stephen Zhao et al vs Tamura Designs, Inc. et al	Hearing on Motion to Vacate Dismissal (CCP section 473) Plaintiff filed a motion to vacate the Court's dismissal order on February 18, 2026 pursuant to Code of Civil Procedure section 473, along with a declaration of counsel but without a proof of service attached or filed. Defendant filed opposition papers on June 26, 2026, with a declaration of counsel, Exhibits A-F, and proof of service. Plaintiff's reply was filed on July 2, 2026. The Court has carefully reviewed the moving papers, including the declarations of counsel, and accompanying exhibits in all three filings related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Timeliness of Motion Under California law, the six-month jurisdictional period to seek relief from a dismissal under Code of Civil Procedure Section 473, subdivision (b) begins to run from the entry of the dismissal, rather than from a prior oral pronouncement. (Code of Civ. Proc. § 473; <i>Austin v. Los Angeles Unified School Dist.</i> (2016), 244 Cal. App. 4th 918.) In this case, because the statute requires an application for relief to be made no more than "six months after entry of judgment" or after the dismissal "was taken," the six-month limitation period is triggered by the formal entry of the written dismissal order on August 19, 2025, rather than the oral pronouncement on August 1, 2025. Although a court minute order from the August 1, 2025 oral order of dismissal was filed, the six-month jurisdictional period begins to run only upon the filing of a formal written order of dismissal signed by the court, rather than the entry of a minute order. (Code Civ. Proc. § 581d). A dismissal noted in a minute order is legally insufficient to constitute the "entry" of dismissal that triggers the Section 473(b) six-month limitation period. (Code of Civ. Proc, § 581d.) Section 581d. explicitly establishes the requirements for entering a dismissal in that all dismissals ordered by the court must be in the form of a written order signed by the court and filed in the action to "constitute judgments and be effective for all purposes". Because section 581d. mandates a signed, written order for a dismissal to be effective "for all purposes," a mere notation of a dismissal in a minute order does not meet the statutory definition of an "entered" dismissal or judgment.
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Consequently, the six-month clock under Section 473(b) does not begin to run until the formal, signed written order of dismissal is filed.

As Plaintiff filed this motion within six months from the August 19, 2025 filing of the dismissal order, the Court finds that it is timely.

Code of Civil Procedure section 473(b)

Code of Civil Procedure section 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken...

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the

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			mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); <i>English v. IKON Business Solutions</i> (2001) 94 Cal.App.4th 130, 143). As Plaintiff has filed a declaration with his motion, a sufficient showing has been made. Considering the purpose of the statute and policy reasons behind it, the motion is GRANTED. The August 19, 2025 order of dismissal is vacated and set aside. The Court will set a further Case Management Conference and issue a specific order for Plaintiff's counsel to appear at all future court dates. Moving party (Plaintiff) to prepare the formal Order.
LINE 5	24CV445991	Christian Baluyot et al vs Shirley Soliman	Hearing on Return of Warrant & Order for Examination Judgment Debtor Shirley Soliman ("Soliman") was ordered to appear in person in Department 20 on November 19, 2025 at 9:01 AM for an Examination where she was to give information regarding a money judgment against her. Because Soliman violated the Court Order by failing to appear at the November 19, 2025 hearing for Examination, the Court issued a Civil Bench Warrant for her arrest in the amount of \$2,500.00. That \$2,500.00 Civil Bench Warrant was served on Soliman on May 11, 2026, at which time she signed a written promise to appear in person for an Examination on July 3, 2026 at 9:01 AM in Department 20. On May 18, 2026, the Court sent a corrected notice of hearing date to the parties advising the July 4th holiday was being observed on July 3, 2026 and the Court was closed. The corrected notice of hearing date set the matter for July 10, 2026 at 9:00 AM in Department 12. Accordingly, the parties are ordered to appear in person for this Examination.

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LINE 6	25CV456053	Sudhandshu Juneja vs Lavan Construction	Hearing on Return of Warrant & Order for Examination Judgment Debtor Lavan Construction/CEO Moein Cyrus Poudat (“Defendant”) was ordered to appear in person in Department 20 on January 14, 2026 at 9:01 AM for an Examination where Defendant was to give information regarding a money judgment against Defendant. Because Defendant violated the Court Order by failing to appear at the January 14, 2026 hearing for Examination, the Court issued a Civil Bench Warrant for Defendant’s arrest in the amount of \$5,000.00. That \$5,000.00 Civil Bench Warrant was served on Moein Poudat on February 17, 2026, at which time he signed a written promise to appear in person for an Examination on April 17, 2026 at 9:01 AM in Department 12. On April 17, 2026, the Civil Bench Warrant was set aside by the Court, the parties met and conferred “regarding the OEX” in the jury room, and the matter was continued to July 10, 2026 at 9:00. Accordingly, the parties are ordered to appear in person for this Examination.
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LINE 7	25CV464001	Shari Yuan vs Starbucks Corporation	Hearing on Motion to Change Venue Tentative Ruling from April 15, 2026 (modified): The Court has carefully considered Plaintiff’s reliance on CCP § 395.5 in filing the Complaint in Santa Clara County. That statute permits suit against a corporation in the county where the corporation has its principal place of business, where the contract is made or performed, or where the obligation or liability arises. Plaintiff argues that because Defendant is a foreign corporation that has not designated a principal place of business within California, it may be sued in any county in the state. The Court does not interpret § 395.5 so broadly. The absence of a designated California principal place of business does not render venue proper in every county. Rather, the statute still requires a nexus between the action and the county selected—most commonly where the liability arises. Here, the alleged injury occurred in Kern County, and thus liability arose there. Plaintiff’s showing that Defendant operates numerous retail locations in Santa Clara County does not establish that Santa Clara County is Defendant’s principal place of business within the meaning of § 395.5, nor does it otherwise supply a statutory basis for venue in this county. Nor does the relative convenience of corporate witnesses, including access to airports or transportation infrastructure, provide an independent basis to establish venue where it is otherwise improper. The Court is mindful of Plaintiff’s residence in Santa Clara County, her ongoing medical care, and the presence of supportive witnesses here. Those are legitimate and practical concerns. However, in personal injury actions, a plaintiff’s residence does not determine venue under CCP § 395, and the Court is constrained to apply the governing statutory framework. Because Santa Clara County is not a proper venue under CCP §§395 or 395.5, transfer is mandatory. The Court therefore does not reach the parties’ arguments regarding convenience under CCP §397. Defendant’s motion to change venue to Kern County Superior Court is GRANTED.
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			Defendant to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 8	25CV469650	Jane Doe vs Chaochin Lu et al	Hearing on Demurrer (Special and General) to FAC Defendant's Demurrer was filed on February 24, 2026 and a hearing date set on May 22, 2026. Notice was proper. On May 22, 2026, the Plaintiff was not present, and the motion was continued to July 10, 2026. The Court also issued an Order to Show Cause Re: Dismissal and sent notice to the Plaintiff. To date there is no filing by Plaintiff opposing Defendants' Demurrer. Defendants' Demurrer to Plaintiff's Complaint is Unopposed and Sustained with 15 days leave to amend.
LINE 9-10	25CV472277	Vahe Tashjian vs Macias Gini & O'Connell LLP et al	Hearing on Demurrer and Motion to Strike FAC. See Lines 9-10 below for tentative ruling. The Court will prepare and file the formal Order.
9:01 LINE 1	25CV479391	Mark Shaw et al vs Chris Rego et al	Hearing on Application to Appear Pro Hac Vice Counsel Defendant's Application for Vaughn Fisher to appear pro hac vice pursuant to California Rules of Court Rule 9.40. Notice being proper, no opposition having been filed, and good cause appearing, the application is GRANTED. Moving party (Defendant) to submit proposed order.

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Calendar Line 1

Case Name: Farzam Forouzandeh v. Henderson Square Associates, et al.

Case No.: 23-CV-421547

Factual and Procedural Background

This is an action for negligence, premises liability, and related claims brought by plaintiff Farzam Forouzandeh (“Plaintiff”) against defendants Henderson Square Associates and Woodmont Real Estate Services, LP (collectively, “Henderson Defendants”) and Thaddeus N. Taube (collectively, “Defendants”).

According to the first amended complaint (“FAC”), on or around June 16, 2021, Plaintiff moved into a one-bedroom, one-story apartment located at 998 Henderson Avenue, Apt. 31, in Sunnyvale, California. (FAC at ¶ 9.) Plaintiff’s apartment complex, listed as part of the “Birchwood Apartment Homes,” was owned by the Henderson Defendants. (Id. at ¶¶ 10-11.)

After moving into his apartment, Plaintiff visited the Henderson Defendants’ office approximately six times, reporting numerous safety issues with his apartment, to no avail. (FAC at ¶ 12.) One of the most concerning issues was a plank of wood that was sagging in Plaintiff’s kitchen that he wanted replaced. (Id. at ¶ 13.) As a tall man, Plaintiff had little space in his kitchen to move around, so he could not easily avoid walking over the sagging area. (Ibid.)

Because he spoke mostly Farsi, Plaintiff utilized the assistance of Iranian-American friends who spoke English, to accompany him when he visited the Henderson Defendants to report these serious concerns to them. (FAC at ¶ 15.) On August 19, 2021, Plaintiff, with the assistance of a fluent English and Farsi-speaking friend, wrote the Henderson Defendants an email identifying problems in his apartment unit including, but not limited to, **“[t]he kitchen floor’s parquet has a problem and it gets worse by walking on it, but no one took care of it yet.”** (Id. at ¶ 16.) Even after Plaintiff’s letter, and several additional visits to the leasing office, the Henderson Defendants did nothing to remedy any of the issues with the apartment at any time. (Id. at ¶ 17.)

On or around June 16, 2022, as Plaintiff was walking through his kitchen after a long day of work, a section of the floor suddenly gave way, and he fell several feet down into a crawl space, causing him to break his back. (FAC at ¶ 19.) Since the fall, Plaintiff has been unable to work and has continued to experience a number of cognitive difficulties, including memory problems, severe back pain, and frequent headaches. (Id. at ¶ 22.)

In or around November 2022, Plaintiff alleges the Henderson Defendants wrongfully evicted him from his apartment, in retaliation for his repeated complaints and his devastating fall through their floor. (FAC at ¶ 27.)

On December 20, 2023, Plaintiff filed the operative FAC against Defendants alleging causes of action for: (1) negligence; (2) premises liability; (3) negligent infliction of emotional distress; and (4) intentional infliction of emotional distress.

On February 2, 2024, the Henderson Defendants filed an answer to the FAC asserting a general denial and affirmative defenses.

On April 14, 2026, the Henderson Defendants filed the motion presently before the court, a motion for summary judgment, or in the alternative, summary adjudication to the FAC. Plaintiff filed written opposition. The Henderson Defendants filed reply papers and evidentiary objections.

In reply, the Henderson Defendants argue Plaintiff's opposition was untimely filed and served. Even so, the Henderson Defendants do not articulate any prejudice by the untimely filing and service of the opposition. Nor does there appear to be any prejudice as they filed timely substantive reply papers including evidentiary objections. And this court prefers to address cases on the merits whenever possible. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds].) The court therefore considers the opposition on its merits.

Trial is scheduled for August 10, 2026.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

The Henderson Defendants move for an order of summary judgment, or in the alternative, summary adjudication on the ground that Plaintiff cannot establish causation on any of his claims for relief.

Motion for Summary Adjudication

“If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b).)

“If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion... [Citation]. There is a sound reason for this rule: ‘... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied.’ [Citation.]” (*Gonzalez v. Super. Ct.* (1987) 189 Cal.App.3d 1542, 1546.)

Similarly, in *Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, the Sixth Appellate District states:

“A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. The movant must ‘state [] specifically in the notice of motion and ... repeat [], verbatim, in the separate statement of undisputed material facts,’ ‘the specific cause of action, affirmative defense, claims for damages, or issues of duty’ as to which summary adjudication is sought. [Citations.] The motion must be denied if the movant fails to establish an

entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers.” (*Id.* at pp. 743-744, emphasis added.)

Here, the notice of motion includes a caption on the first page identifying the motion as one for summary judgment or, alternatively, summary adjudication. But, the contents of the notice of motion do not specifically request summary adjudication of any cause of action, affirmative defense, claim for damages or issue of duty. Instead, the Henderson Defendants request an order adjudicating the issue of causation which is not an appropriate issues for resolution by motion for summary adjudication. Nor does the separate statement set forth the cause of action, affirmative defense, claim for damages or issue of duty for which summary adjudication is requested as required by the rules of court.

Consequently, the court lacks any legal grounds to grant or deny the Henderson Defendants’ alternative motion for summary adjudication. Therefore, the instant application is treated solely as a motion for summary judgment.

Evidentiary Objections

“In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court...” (Code Civ. Proc., § 437c, subd. (c).)

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Written evidentiary objections must be made in a separate document and must not be re-stated or re-argued in the separate statement. (Cal. Rules of Court, rule 3.1354(b).) Objections must identify the specific item of evidence that is objectionable. (*Ibid.*) In addition, evidentiary objections must be accompanied by a proposed order that complies with the requirements set forth in California Rules of Court, rule 3.1354(c). The rule requires an objecting party to file two separate documents, objections and a separate proposed order, both in one of the approved formats set forth in the rule. (See Cal. Rules of Court, rule 3.1354(b) and (c).)

In reply, the Henderson Defendants submit objections to evidence incorporated with Plaintiff’s opposition. The court OVERRULES Objection Nos. 1-7. The court declines to rule on the remaining objections as they are not material to the outcome of the motion for reasons explained below.

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute.

[Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

“Defendants moving for summary judgment may satisfy their initial burden either by producing evidence of a complete defense or by showing the plaintiff’s inability to establish a required element of the case. [Citations.]” (*Spinks, supra*, 171 Cal.App.4th at p. 1021.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. omitted.) If the party opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* at p. 843.) “[S]ummary judgment is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660.)

Analysis

On summary judgment, “the pleadings frame the issues to be resolved. ‘The purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] ‘The function of the pleadings in a motion for summary judgment [adjudication] is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.’ [Citations.]’ [Citations.]” (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477.)

As stated above, the operative pleading alleges causes of action for negligence, premises liability, negligent infliction of emotional distress, and intentional infliction of emotional distress. To prevail on these cause of action at trial, Plaintiff must demonstrate that affirmative conduct or omissions by the Henderson Defendants were the cause of his injuries. (See *Hassaine v. Club Demonstration Services, Inc.* (2022) 77 Cal.App.5th 843, 850 [“The essential elements for both negligence and premises liability are duty, breach, causation, and damages.”]; *Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129 [“Negligent infliction of emotional distress is a form of the tort of negligence, to which the elements of duty, breach of duty, causation and damages apply.”]; see also *Cochran v.*

Cochran (1998) 65 Cal.App.4th 488, 494 [a claim for intentional infliction of emotional distress requires a plaintiff to prove that his or her injuries were actually and proximately caused by the defendant's outrageous conduct].)

As to causation, Plaintiff alleges in relevant part that:

“Defendants Henderson Square Associates, Woodmont Real Estate Services and Does 1 through 50 carelessly and negligently owned, hired, trained, and supervised personnel who operated, maintained, cleaned, inspected and controlled said premises, specifically failed to repair the flooring of Farzam Forouzandeh's apartment, causing the floor to give way as Farzam Forouzandeh walked over it, and causing an extremely dangerous condition of which Farzam Forouzandeh was unaware (a deep crawl space beneath his kitchen floor,) causing Plaintiff to fall through the floor, which greatly injured Plaintiff Farzam Forouzandeh.” (FAC at ¶ 30.)

“Farzam Forouzandeh's harm ordinarily would not have happened unless someone was negligent. The harm was caused by something that only Henderson Square Associates & Woodmont Real Estate Services controlled; and Farzam Forouzandeh's voluntary actions did not cause or contribute to the event[s] that harmed him.” (FAC at ¶ 31.)

On summary judgment, the Henderson Defendants argue Plaintiff cannot show causation to support any of his claims.

As causation is the sole issue raised on summary judgment, the court declines to consider Plaintiff's breach of duty argument in opposition.

“In order for a plaintiff to satisfy the causation element of a negligence cause of action, he or she must show the defendant's act or omission was a substantial factor in bringing about the plaintiff's harm. [Citation.] ‘In other words, [the] plaintiff must show some substantial link or nexus between omission and injury.’ [Citation.]” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1104.)

As to negligence, “[a] plaintiff meets the causation element by showing that (1) the defendant's breach of its duty to exercise ordinary care was a substantial factor in bringing about plaintiff's harm, and (2) there is no rule of law relieving the defendant of liability.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205 (*Ortega*).)

“ ‘On the issue of the fact of causation, as on other issues essential to the cause of action for negligence, the plaintiff, in general, has the burden of proof. The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.’ [Citation.]” (*Ortega, supra*, 26 Cal.4th at pp. 1205-1206.)

“ ‘Whether a defendant's conduct actually caused an injury is a question of fact [citation] that is ordinarily for the jury [citation].’ [Citation.] ‘[C]ausation in fact is ultimately a matter of

probability and common sense: “[A plaintiff] is not required to eliminate entirely all possibility that the defendant’s conduct was not a cause. It is enough that he introduces evidence from which reasonable [persons] may conclude that it is more probable that the event was caused by the defendant than that it was not. The fact of causation is incapable of mathematical proof, since no [person] can say with absolute certainty what would have occurred if the defendant had acted otherwise. If, as a matter of ordinary experience, a particular act or omission might be expected to produce a particular result, and if that result has in fact followed, the conclusion may be justified that the causal relation exists. In drawing that conclusion, the triers of fact are permitted to draw upon ordinary human experience as to the probabilities of the case.” [Citation.]’ [Citation.]” (*Raven H. v. Gamette* (2007) 157 Cal.App.4th 1017, 1029-1030.)

Causation is ordinarily a question of fact which cannot be resolved by summary judgment. (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 212.) The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion. (*Ibid.*)

The Henderson Defendants first argue there is no evidence of causation as Plaintiff has a preexisting condition and history of back-related issues that predate the alleged accident. As a preliminary matter, the memorandum of points and authorities submitted by the Henderson Defendants does not direct the court to any specific material facts in the separate statement to support this position.

“The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed.” (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210.) As one California appellate court explained:

“Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and **to permit trial courts to expeditiously review complex motions for SAI and summary judgment to determine quickly and efficiently whether material facts are disputed.**” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335, emphasis added.)

As another court articulated:

“Courts are entitled to assistance from counsel, and an invitation to search without guidance is no more useful than a litigant’s request to a district court at the summary judgment stage to paw through the assembled discovery material. ‘Judges are not like pigs, hunting for truffles buried in’ the record. [Citation.]” (*Albrechtsen v. Bd. of Regents of Univ. of Wisconsin Sys.* (2002) 309 F.3d 433, 436.)

That said, the Henderson Defendants have submitted evidence in support the position which is before the court and rely heavily on *Beebe v. Wonderful Pistachios & Almonds LLC* (2023) 92 Cal.App.5th 351 (*Beebe*), a recent decision from the Fifth Appellate District. *Beebe* however is not persuasive as it does not stand for the proposition that a defendant prevails on the issue of causation where a plaintiff has a preexisting condition. Instead, the appellate court

concluded summary judgment was not appropriate in a personal injury case where a triable factual issue existed as to whether there was a reasonable medical probability that a failure to safely remove bird droppings at a facility where a subcontractor's employee worked on construction projects had been a substantial factor in causing the employee to develop an illness. The Court of Appeal stressing that, while the substantial factor test is a relatively broad one, the causation issue addresses whether it is *more likely than not* that plaintiff's injury was a result of defendant's act or omission. (*Beebe, supra*, at p. 370.)

The court notes also that, "[e]ven in cases involving only negligent conduct, where the victim has a preexisting physical or mental condition that makes him unusually susceptible and results in harm greater than might reasonably be expected, the actor is nevertheless liable for all such harm." (*Fisher v. Fisher* (2026) 118 Cal.App.5th 899, 923.) And, to the extent that Plaintiff's preexisting back injuries be given any consideration, that is an issue to be weighed by the trier of fact at the time of trial. (See *Kids' Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 879-880 [there is no weighing of evidence on a motion for summary judgment].)

The Henderson Defendants also contend Plaintiff provided inconsistent dates and accounts of the alleged accident and did not report the incident until 4-5 weeks after it occurred. (See Henderson Defendants' Separate Statement of Undisputed Facts ["SSUF"] at Nos. 78-79.) But, these contentions are unavailing as Plaintiff alleged an approximate date of the accident as "on or around June 16, 2022." (FAC at ¶ 19.) In fact, Plaintiff admitted at deposition that the accident occurred in June 2022. (See Plaintiff's Additional Fact at No. 88 [Plaintiff's Depo at p. 7:15-21].) Regardless, these points are not material as they do not address whether conduct or omissions by the Henderson Defendants were a substantial factor in causing Plaintiff's injuries in this case.

The Henderson Defendants further assert there is no causation to support Plaintiff's claims as his present medical condition is the result of the natural and normal progression of his pre-existing disease. In support, they rely on expert testimony from Dr. Robert Rovner M.D. ("Dr. Rovner"), a board certified orthopedic surgeon who performed an IME on Plaintiff on December 8, 2025. (See Henderson Defendants' SSUF at No. 80.)

"As a general matter, juries may decide issues of causation without hearing expert testimony. [Citation.] But '[w]here the complexity of the causation issue is beyond common experience, expert testimony is required to establish causation.' [Citations.]" (*Webster v. Claremont Yoga* (2018) 26 Cal.App.5th 284, 290; see *Jones v. Ortho Pharm. Corp.* (1985) 163 Cal.App.3d 396, 402 ["The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony."].)

According to evidence submitted by the Henderson Defendants, Dr. Rovner: (1) reviewed Plaintiff's entire medical history beginning when he had his first doctor appointment in the US on October 19, 2020, through Plaintiff's most recent appointment with Dr. Kenneth Light ("Dr. Light"); and (2) performed a physical examination of Plaintiff. (See Henderson Defendants' SSUF at Nos. 81-82.) Following his diagnosis of Plaintiff, Dr. Rovner, in his report, concluded in pertinent part:

"Mr. Forouzandeh has a straightforward physical examination consistent with prior lumbar surgery with persistent left sciatica and a left foot drop. It is unclear whether the surgery that he has already undergone was of any help, or

whether it was temporarily helpful and then the symptoms recurred. He may well require further surgery, or at least that might be an option for him, but his need for the original operation and any subsequent care is simply not the result of the incident on June 21, 2022. **His medical records clearly document the same exact symptoms referable to his lower back and left sciatic leg pain that he experienced after the incident of June 21, 2022, and the surgery that was done after that was for this preexisting condition and really not due at all to the June 21, 2022 events.**” (*Id.* at Nos. 83-84, emphasis added.)

In opposition, Plaintiff provides an expert declaration from Dr. Light which states in relevant part:

“From the material provided to me, on 6/21/22, the patient slipped through the floor. He felt a sudden escalation of his back pain with pain radiating down his left leg and a footdrop. He subsequently was referred to Edward Rustamzadeh who performed an L4-5 laminectomy and discectomy for herniated disc discovered on the MRI scan of 6/22/22, one day following the accident. He subsequently had another MRI scan done on 2/22/24 that shows recurrent disc herniation and scar tissue which is labeled the L5-S1 segment, which was the operative segment, and could also theoretically be considered the L3-5 level for the reasons mentioned above. I also reviewed another MRI scan on 3/15/23 that again identifies an extruded disc which is read out as the L5-S1 level on this scan, but is really the L4-5 level.

After reviewing all of the documents, looking at the MRI reports and taking into account the patient’s history and recount of the appearance of symptoms, it is my opinion that the patient had a pre-existing disc protrusion at L5-S1. **As the result of the subject fall accident on or about 6/16/22, he fell through the floor sustaining a herniated disc at the second mobile disc level which we will call the L4-5 level, which resulted in a footdrop and the need for surgery and the current need for revision surgery. Thus, the fall made the pre-existing conditions he had worse.**” (See Plaintiff’s Additional Facts at Nos. 129-130; Dr. Light Decl. at ¶¶ 11-12, emphasis added.)

The expert testimony provided on both sides creates a conflict in the evidence on the issue of causation that cannot be resolved by a motion for summary judgment. (See *Saldana v. Globe-Weis Systems Co.* (1991) 233 Cal.App.3d 1505, 1510 [“The trial court’s sole function on a motion for summary judgment is issue finding, not issue determination.”]; *Lugtu v. California Highway Patrol* (2001) 26 Cal.4th 703, 708 [“[I]n view of the conflicting declarations and the provisions of the CHP Officer Safety Manual submitted by plaintiffs in opposition to the summary judgment motion, the issue whether the officer was or was not negligent cannot properly be resolved by a court as a matter of law and instead presents a triable issue of fact for the jury’s determination.”]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840 [“The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true.”]; see also *Roe v. McDonald’s Corp.* (2005) 129 Cal.App.4th 1107, 1110, fn. 1 [“A summary judgment simply cannot be defended with a credibility argument.”].)

As a final point, the Henderson Defendants argue they are entitled to summary judgment even if causation is just as likely as not. In support, they rely on *Padilla v. Rodas* (2008) 160

Cal.App.4th 742 (*Padilla*) for the proposition that “[a] mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.” (*Padilla, supra*, at p. 752, italics and citation omitted.) The Henderson Defendants also cite *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1119 (*Stokes*), a Sixth Appellate District decision, where the appellate court reiterated that a “plaintiff must establish, by nonspeculative evidence, some actual causal link between the plaintiff’s injury and the defendant’s failure to provide adequate security measures.” (*Stokes, supra*, at p. 1217.) But, the court is not persuaded by these authorities as Plaintiff submitted nonspeculative evidence to support causation for reasons stated above. Nor is the court inclined to grant summary judgment on the basis that the “probabilities are best evenly balanced” as Plaintiff has provided expert medical evidence establishing that his fall made his pre-existing conditions worse. Resolution of that disputed issue must ultimately be determined by the trier of fact at trial, not on this motion for summary judgment. (See *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

Therefore, the motion for summary judgment is DENIED.

Disposition

The motion for summary judgment to the FAC is DENIED.

The court will prepare the order.

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Calendar Lines 9-10

Case Name: Tashjian v. Macias Gini & O'Connell LLP et
Case No.: 25CV472277

I. Background

Plaintiff Vahe Tashjian ("Plaintiff"), as trustee of the Vahe S. Tashjian 2018 Revocable Living Trust ("the Trust"), brings this action against defendant Macias Gini & O'Connell LLP ("Defendant"). Plaintiff is a member of 18500 Marshall Ln LLC ("Marshall") and it is named as a nominal party.

In 2021, Dutchints Development, LLC ("DDL"), a developer of real property, filed for bankruptcy and the proceeding remains pending. (First Amended Complaint ("FAC"), ¶ 8.) Prior to filing for bankruptcy, DDL entered into purchase negotiations for vacant land located at 18500 Marshall Lane in Saratoga, California. (*Id.* at ¶ 9.) The seller and DDL entered into a final Purchase and Sale Agreement ("the Agreement") with specific terms. (*Ibid.*) In 2018, the articles of organization for Marshall were filed and DDL was listed as the manager and sole member of Marshall. (*Id.* at ¶ 10.)

Thereafter, DDL wired an initial deposit for Marshall, but then ultimately delivered a notice of termination to the seller. (FAC, ¶ 11.) The parties then made amendments to the Agreement which resulted in a modified purchase price and an extended approval date. (*Ibid.*)

In May 2019, DDL assigned the Agreement to Marshall and Marshall then wired a second deposit. (FAC, ¶ 12.) In August 2019, Marshall adopted an operating agreement and elected to be a manager-managed LLC, with DDL as the manager. (*Id.* at ¶ 13.) In October 2019, Marshall sent the one-year deposit to hold in escrow pursuant to the Agreement. (*Id.* at ¶ 15.) Marshall's 2019 tax return was then prepared by Defendant and listed DDL as a representative, provided for nine partners, and included K-1's for each member reflecting the contributions. (*Id.* at ¶ 16.) The parties again amended the Agreement and acknowledged that Marshall had not obtained final approval of the development map, thus, the parties agreed to extend close of escrow. (*Id.* at ¶ 17.)

Then the 2020 taxes were prepared and incorrectly listed Marshall as a "pass through entity of" DDL. (FAC, ¶ 18.) In October 2022, Plaintiff attempted to contact Defendant to inquire why the 2020 tax returns incorrectly listed DDL as having 100% ownership interest in Marshall. (*Id.* at ¶ 21.) The incorrect taxes subjected Marshall to DDL's bankruptcy proceedings. (*Id.* at ¶ 22.) The inaccurate tax filings terminated any and all possibility for Marshall to complete its development project. (*Id.* at ¶ 23.)

On August 8, 2025, Plaintiff filed the initial complaint in pro per. On August 13, 2025, Plaintiff filed the operative FAC, in pro per, asserting a single cause of action for professional negligence.

On December 19, 2025, Defendant filed a demurrer to the FAC. Plaintiff has since obtained counsel and opposes the motion. On December 23, 2025, Defendant filed a motion to strike portions of the FAC. This motion is also opposed.

The Court addresses each motion below.

II. Defendant's Demurrer

Defendant demurs generally to the first cause of action on the ground it fails to state sufficient facts to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e) and demurs specifically on the ground the FAC is uncertain pursuant to subdivision (f).

a. Legal Standard on Demurrer

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

b. Request for Judicial Notice

Defendant requests judicial notice of the following:

- 1) Official Form 202 Declaration under penalty of perjury for non-individual debtors (Ex. 1);
- 2) Tax Engagement Agreement Letter between Plaintiff and Defendant for individual tax services (Ex. 2); and
- 3) Tax Engagement Agreement Letter entered into between Plaintiff and Defendant for tax services related to Plaintiff’s business ventures (Ex. 3.)

The request for Exhibit 1 is GRANTED. (See Evid Code, § 452, subd. (d).) The request for Exhibits 2 and 3 is DENIED. While Defendant contends that these agreements are mentioned in the pleading, the Court finds no mention of either document. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [declining to take judicial notice of materials not “necessary, helpful, or relevant”].

c. Analysis on Demurrer

In support of its demurrer, Defendant argues: 1) Plaintiff fails to establish he has standing to bring the professional negligence claim; 2) the statute of limitations on Plaintiff’s claims have expired; 3) Plaintiff fails to sufficiently allege a claim for professional negligence; and 4) the facts alleged are uncertain.

“The elements of a claim for professional negligence are (1) the duty of the professional to use such skill, prudence, and diligence as other members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the

professional's negligence.” (*Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1095 [internal citations omitted].)

i. Standing

Defendant first contends that the Trust, and Plaintiff in his capacity as trustee, lacks standing to bring a claim against Defendant for its rendering of tax services to Marshall. (Demurrer, p. 4:23-24.) Defendant asserts that there are no allegations it provided any accounting services to the Trust or was engaged by the Trust to provide any accounting services at any time. (*Id.* at p. 4:27-28.)

In opposition, Plaintiff directs the Court to *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370 (*Bily*) to argue that “accountants owe duties to third parties whose reliance upon their professional work is reasonably foreseeable to a substantial certainty[.]” (Opposition, p. 2:21-24.) The Court is not persuaded that this was the determination made by the *Bily* Court. Instead, the Supreme Court held that “an auditor’s liability for general negligence in the conduct of an audit of its client[’s] financial statements is confined to the client, i.e., the person who contracts for or engaged the audit services. Other persons may not recover on a pure negligence theory.” (*Bily, supra*, at p. 406.) The Court stated that while there is a narrow class of persons who are not clients and may recover on a theory of negligent misrepresentation but “may not recover on a general negligence theory[.]” (*Id.* at pp. 406-407; see also *Industrial Indemnity Co. v. Touche Ross & Co.* (1993) 13 Cal.App.4th 1086, 1091 [“accountants are not liable to third parties for general negligence”].)

Plaintiff further argues that because he is a member of Marshall he has standing to file suit against Defendant. (Opposition, p. 2:18-21.) However, courts have held that accountants hired by a partnership do not owe a duty to an individual partner. (See e.g., *Richard B. LeVine, Inc. v. Higashi* (2005) 131 Cal.App.4th 566, 581.) To come to the determination, courts apply the *Biakanja* factors: 1) the extent to which the transaction was intended to affect the plaintiff, 2) the foreseeability of harm to him, 3) the degree of certainty that the plaintiff suffered injury, 4) the closeness of the connection between the defendant’s conduct and the injury suffered, 5) the moral blame attached to the defendant’s conduct, and 6) the policy of preventing future harm. (*Id.* at pp. 581-582, citing *Biakanja v. Irving* (1958) 49 Cal.2d 647, 650.)

The FAC is devoid of these supporting allegations. Moreover, the FAC contains no allegations that the Trust suffered actual loss or damages resulting from Defendant’s alleged negligence in providing tax services to Marshall. In opposition, Plaintiff acknowledges the deficiencies in his FAC and requests the opportunity to file a second amended complaint to address the deficiencies that serve the basis for the demurrer and motion to strike. (Opposition, p. 2: 2-9.)

Given the liberality in allowing leave to amend, the Court sustains the demurrer and allows Plaintiff the opportunity to file a second amended complaint. (See *City of Stockton v. Superior Ct.* (2007) 42 Cal.4th 730, 747.) With that said, Plaintiff may only amend the pleading as to the cause of action pled in the FAC. The Court will allow Plaintiff to amend the pleading to add a claim for negligent misrepresentation, as it directly responds to the above analysis. (See Opposition, p. 3:14-15 [seeking to add a cause of action for negligent misrepresentation].) However, Plaintiff may not amend the complaint to add any additional new causes of action without first filing a motion for leave to amend for the Court’s consideration. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.)

Accordingly, the general demurrer is SUSTAINED with 15 days leave to amend. The Court declines to sustain the demurrer on the ground it is uncertain, thus the special demurrer is OVERRULED. The motion to strike is MOOT. Given this ruling, it is unnecessary to address any remaining arguments.

III. Conclusion and Order

The general demurrer is SUSTAINED with 15 days leave to amend. The motion to strike is MOOT.

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